

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olga Bentin	Team: Squad #04	CCRB Case #: 201702266	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 03/24/2017 10:10 AM	Location of Incident: Fulton Street and Greene Avenue	18 Mo. SOL 9/24/2018	Precinct: 88
Date/Time CV Reported Fri, 03/24/2017 1:35 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Fri, 03/24/2017 1:35 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jimmy Wu	5491	943969	088 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Estling	13494	961744	088 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jimmy Wu	Abuse: Sergeant Jimmy Wu threatened to arrest § 87(2)(b)	A . Exonerated
B . SGT Jimmy Wu	Abuse: Sergeant Jimmy Wu searched § 87(2)(b)	B . Exonerated
C . SGT Jimmy Wu	Discourtesy: Sergeant Jimmy Wu acted discourteously toward § 87(2)(b)	C . Unsubstantiated

Case Summary

On March 24, 2017, § 87(2)(b) went to the 88th Precinct stationhouse and filed this complaint in person. On March 24, 2017, the complaint was forwarded to the CCRB by Sgt. Marilyn Vetter of the 88th Precinct. While at the 88th Precinct stationhouse, § 87(2)(b) called 911 and was connected with IAB, where she filed a duplicate of this complaint. On March 27, 2017, this duplicate complaint was referred to CCRB.

On March 24, 2017, at approximately 10:10 a.m., § 87(2)(b) was driving her vehicle when she was stopped by PO John Estling and Sgt. Jimmy Wu, of the 88th Precinct, for excessively tinted windows in the vicinity of Fulton Street and Greene Avenue in Brooklyn. PO Estling measured the window tints of § 87(2)(b)'s car and determined that they were illegal. He then asked § 87(2)(b) to provide her driver's license and registration. § 87(2)(b) refused and asked to speak to PO Estling's supervisor.

When Sgt. Wu approached, he immediately said to § 87(2)(b) "If you are not going to give me your driver's license and registration, I will arrest you" (**Allegation A**). Sgt. Wu asked § 87(2)(b) again to provide her driver's license and registration. § 87(2)(b) still refused.

Sgt. Wu then placed his hand through the front driver side window, unlocked the door, and leaned inside. Sgt. Wu then grabbed § 87(2)(b)'s wallet out of her left hand, opened it, pulled out her driver's license, and then threw the wallet back at her, causing it to hit her in the upper chest (**Allegations B and C**). Sgt. Wu and PO Estling then returned to their car.

At approximately 10:50 a.m., PO Estling and Sgt. Wu returned to § 87(2)(b)'s car. PO Estling handed § 87(2)(b) her driver's license and the summonses. § 87(2)(b) then drove away.

§ 87(2)(b) was not arrested at the result of this incident, but she was issued three summonses: one for illegally tinted windows (BR 02), another one for rear license plate being obstructed (BR 03), and the third one for disorderly conduct (BR 04).

§ 87(2)(b) provided the investigation with a video recording she took at the time of the incident. This recording did not capture any misconduct. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- A FOIL request was sent to the NYC Comptroller on April 23, 2017, for any Notice of Claim filed in regard to this incident. The results of the request will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (BR 06).
- Sgt. Jimmy Wu has been a member of service for 10 years and has one prior allegation stemming from one complaint, which was unsubstantiated. § 87(2)(g)

Potential Issues

- § 87(2)(b) initially said that she stopped her car at a bus stop approximately two blocks away from the Atlantic Avenue Mall; based upon the description, the investigation determined that § 87(2)(b) was stopped at the bus stop in the vicinity of 727 Fulton Street. Field work was conducted and yielded negative results for any exterior cameras at 727 Fulton Street and other nearby establishments. In the course of officer interviews, it was discovered that § 87(2)(b) in fact was stopped at the Fulton Street and Greene Avenue bus stop, approximately a block away from 727 Fulton Street. Further investigation concluded that there were no establishments in the vicinity of the bus stop that could have captured the incident; moreover, by the time the investigation learned about this, any video materials would have been expunged.
- § 87(2)(b) began recording the incident on her cell phone after the officers returned to their vehicle to issue her the summonses, thus no initial interaction or FADO allegation was captured.

Findings and Recommendations

Allegations not pleaded

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

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§ 87(2)(g)

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[REDACTED]

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[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Allegation A-Abuse of Authority: Sergeant Jimmy Wu threatened to arrest § 87(2)(b)

§ 87(2)(b) (BR 01) said that on March 24, 2017, at approximately 10:10 a.m., she was driving in the vicinity of Fulton Street and Green Avenue in Brooklyn. She was alone in her car. When § 87(2)(b) reached the intersection of Fulton Street and Green Avenue, she stopped at a red light. While waiting for the light to change, § 87(2)(b) saw a marked police SUV also stopped at the red light on Greene Avenue.

When the light turned green, § 87(2)(b) proceeded to drive and the police vehicle followed her. The police vehicle then turned on its police lights and stopped § 87(2)(b). § 87(2)(b) drove to the nearest bus stop and stopped there.

After § 87(2)(b) stopped, two police officers, PO John Estling and Sgt. Jimmy Wu, exited their vehicle and approached § 87(2)(b)'s car. PO Estling approached § 87(2)(b)'s car from the front driver side, while Sgt. Wu approached from the front passenger side.

PO Estling asked § 87(2)(b) for her driver's license and registration. § 87(2)(b) asked PO Estling to explain why she was pulled over. PO Estling informed § 87(2)(b) that the window tints of her car were illegal. § 87(2)(b) said that when she initially purchased her car, it had illegal tints. However, approximately four years prior to this incident, she changed the tints to comply with the legal requirements, though she did not know at what percent light transmittance the new tints were. PO Estling told § 87(2)(b) that the tints of 30 percent or above were illegal. § 87(2)(b) asked PO Estling to measure the tints. PO Estling measured the tints with a tint meter which showed that they were at 25 percent. PO Estling then told § 87(2)(b) that 25 percent was considered below required limit, thus the tints were illegal. § 87(2)(b) insisted that the tints were legal and requested to speak to a supervisor.

PO Estling then pointed to Sgt. Wu and told § 87(2)(b) that he was his sergeant. When Sgt. Wu approached the driver side, § 87(2)(b) asked him to explain the allowable tint limits in the State of New York. Sgt. Wu provided different information to § 87(2)(b) than PO Estling. § 87(2)(b) got suspicious because the officers were contradicting each other, so she requested that Sgt. Wu dispatch his supervisor to the scene. Sgt. Wu told § 87(2)(b) that his supervisor was not going to come, and then said, "If you are not going to give me your driver's license and registration, I will arrest you." § 87(2)(b) replied to Sgt. Wu, "Because you are giving me incorrect information about tints, I will be arrested?" Sgt. Wu said, "License and registration now." § 87(2)(b) refused as she felt she had been stopped for no reason.

As the result of this incident, § 87(2)(b) was issued three summonses: § 87(2)(b) (BR 04).

Sgt. Wu (BR 07) said that on March 24, 2017, at 10:20 a.m., he and PO Estling observed a sedan with darkly tinted windows travelling northbound on Fulton Street. Sgt. Wu and PO Estling decided to stop the car to inquire about the tints. They turned on the police lights and stopped the car. The driver, § 87(2)(b) pulled over in the vicinity of the Fulton Street and Greene Avenue bus stop.

PO Estling approached the car from the front driver side, while Sgt. Wu approached from the front passenger side. At first, Sgt. Wu did not hear what PO Estling and § 87(2)(b) talked about, but, after approximately one minute, Sgt. Wu heard PO Estling and § 87(2)(b) arguing. Sgt. Wu decided to approach the driver side to see what was going on. Sgt. Wu heard § 87(2)(b) tell PO Estling that it was legal for her to drive with darkly tinted windows in the State of New York. Sgt. Wu and PO Estling then both explained to § 87(2)(b) that window tints of her car were illegal and requested her driver's license and registration. Sgt. Wu explained that PO Estling had measured the tints of § 87(2)(b)'s car and they were at 26 or 27 percent light transmittance, which was below the required 70 percent light transmittance. § 87(2)(b) insisted that her car's tints were legal and refused to provide her documents. Sgt. Wu asked § 87(2)(b) approximately 20 times in the course of 10 or 15 minutes to comply with his request and to provide her driver's license and registration. § 87(2)(b) was upset and continued to refuse. Sgt. Wu told § 87(2)(b) that "failure to provide a driver's license or any kind of identification to the officer for traffic stop

will lead to an arrest.” When Sgt. Wu made this statement to § 87(2)(b) he intended to arrest her for operating the vehicle without a driver’s license, because she did not provide it to him upon his numerous requests. Besides refusing to provide her identification, Sgt. Wu had no other reason for which he intended to arrest § 87(2)(b) at that time.

PO Estling (BR 08) § 87(2)(g) he also asked § 87(2)(b) to provide her driver’s license and registration over five times and she refused. § 87(2)(b) was very upset and yelled at the officers.

Under Patrol Guide Procedure 208-01 (BR 09), an officer has a right to arrest an individual for petty offenses, such as violations and traffic infractions, committed in his presence.

Evans v. Solomon, 681 F. Supp. 2d 233 (2010) (BR 10), established that when an officer has probable cause to believe that a traffic violation has occurred in the officers’ presence, the officer can use his discretion to arrest the motorist, or issue a summons in lieu of arrest.

§ 87(2)(g) . It is therefore recommended that **Allegation A** be closed as **Exonerated**.

Allegation B-Abuse of Authority: Sergeant Jimmy Wu searched § 87(2)(b)

Allegation C-Discourtesy: Sergeant Jimmy Wu acted discourteously toward § 87(2)(b)

§ 87(2)(b) (BR 01) said that Sgt. Wu attempted to open her car door but it was locked. He then placed his hand though the front driver side window, and unlocked the door. Afterwards, Sgt. Wu leaned in the car, and § 87(2)(b) said to him, “You’re really doing this?” Sgt. Wu replied, “Yeah, I am going to arrest you.”

Sgt. Wu then looked down and saw that § 87(2)(b) was holding a wallet in her other hand. He immediately grabbed her wallet from § 87(2)(b)’s hand and exited the car. While standing outside, Sgt. Wu opened the wallet, pulled out her driver’s license, and then threw the wallet back at § 87(2)(b) which hit her in the upper chest.

Sgt. Wu (BR 07) acknowledged that he opened the front driver side door the way § 87(2)(b) described because she had refused to open it upon his request. After Sgt. Wu opened the car door, § 87(2)(b) handed him her wallet voluntarily. Sgt. Wu did not lean inside § 87(2)(b)’s car during this incident. Sgt. Wu described the wallet as having a clear exterior panel that exposed § 87(2)(b)’s driver’s license. Sgt. Wu denied grabbing the wallet out of § 87(2)(b)’s hand, or opening it to find her driver’s license.

Sgt. Wu pulled § 87(2)(b)’s driver’s license from the clear panel, and handed the wallet back to § 87(2)(b). Sgt. Wu denied ever throwing the wallet back at § 87(2)(b).

PO Estling (BR 08) § 87(2)(g) § 87(2)(b) handed the wallet to Sgt. Wu voluntarily, and he saw Sgt. Wu pull § 87(2)(b)’s license from the wallet. PO Estling said that Sgt. Wu handed the wallet back to § 87(2)(b) and denied that Sgt. Wu ever threw the wallet back at § 87(2)(b).

Evans v. Solomon, 681 F. Supp. 2d 233 (E.D.N.Y. 2010) (BR 10) established that an officer is permitted to search individual’s pocket for his identification once the officer established

probable cause to arrest the individual for the traffic infraction, even in the absence of exigent circumstances or a subsequent arrest.

§ 87(2)(g)

. It is therefore recommend that **Allegation B** be closed as **Exonerated**.

§ 87(2)(g)

. It is therefore recommended that **Allegation C** be closed as **Unsubstantiated**.

Squad: 4

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date